

POLITICAL REASONABLENESS IN CONTEMPORARY
ARGUMENTATION THEORY: A CONTENT ANALYSIS OF
THE *NEW YORK TIMES*, 1860-2004

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Reasonableness is the most important concept in argumentation studies. A philosophical account of reasonableness underwrites the theoretical, empirical, and practical endeavors of all argumentation research (van Eemeren & Grootendorst, 2004). Any comprehensive research program in argumentation—a program that can claim both empirical adequacy and critical insight—is underwritten by a philosophical ideal of reasonableness that establishes the standards of warranted assent, provides the assumptive framework for a normative model of argumentative discourse and, thereby, provides the criteria for describing and evaluating naturally occurring argumentative practices.

Moreover, reasonableness is not simply a part of the argumentation scholars' critical apparatus; it serves several important functions in public deliberation. Stakeholders use it as a resource to describe, critique and justify the norms regulating the inclusion and exclusion of group perspectives, of modes of communication and of knowledge claims in public deliberations because it functions as a standard by which the practices of public justification can be evaluated. It in turn informs the design processes for both training participants and facilitating public communication. Further, the ideal of reasonableness has been undergoing a major revival in political philosophy. At the forefront of this revival is the distinction between rationality and reasonableness that forms the core of John Rawls' (1996) re-visioning of democratic theory. For Rawls, to be politically reasonable means that citizens are willing to collaborate with others in proposing fair terms of social cooperation and have the commitment to act on these terms, even if doing so means that they must accept less than what was hoped for.

The possibilities for collaboration between argumentation scholarship and democratic theory, on this issue, are striking. On its face, it seems that argumentation theory could provide deliberative democrats with a conception of reasonableness that could underwrite a model of political dialogue capable of resolving disputes between those persons who radically differ in social and political views. And political philosophy could provide argumentation theorists with an account of the conditions of justice within deeply pluralistic societies necessary to underwrite the procedural rules that would make such a model of dialogue successful.

We contend that the best means for pursuing this collaborative project is to look to actual instances of argumentative practice as the grounds for respecifying what constitutes political reasonableness. To date, we have found no systematic treatment of political reasonableness grounded in the analysis of argumentative discourse. Perhaps this is because what counts as reasonable is open to debate. What constitutes reasonableness is itself an essentially political question and therefore intrinsically indeterminate. Interlocutors use the ideal normatively and reflexively to manage the trajectory of their critical discussions. By employing reasonableness as a normative meta-discourse for talking about what they and their fellow interlocutors do, arguers categorize and characterize, they impose an interpretative grid on argumentative conduct and its agents. Hence, to gain a firm grasp on how the concept is used generally, one would have to supplement theoretical reflection and case study with a method that examines hundreds, if not thousands, of invocations of the concept in moments of deliberative rhetoric.

The editorial page of the *New York Times* is an ideal candidate for such an endeavor. It is national in scope. It is deliberative in character, even when discussing legal issues or political leadership. It is inherently argumentative. And, most importantly, it purports both to represent and to cultivate a public voice. In one of the few instances where the *Times* editorial staff have used the page to publicly reflect on its rhetorical character (occasioned by the retirement of John B. Oakes, who presided over the editorial page from 1956-1977), they noted that “from out front, we know, an editorial page appears to be a chorus without a

face, a booming but disembodied voice, a We that represents no discernable I. We work hard at that illusion. When borne aloft by a great news machine, an editorial page speaks louder than any individual could, or should; that is why we speak anonymously.” Perfectly illustrating the rhetorical strategies of abstraction and negativity that Michael Warner has shown to be so effective in formulating a public, the *Times* staff go on to define the “editorial We” as the “community of the reasonable and responsible,” a universal audience, or if you prefer a Bakhtinian super-addressee, which via a process of rhetorical transfiguration embodies reasonableness.

Method

The *Times* editorial page invoked the concept of reasonableness (operationalized by the use of the terms *reasonable*, *unreasonable*, *reasonableness*, and *unreasonableness*) in 22,314 editorials between January 1860 and December 2004 (the newspaper started publishing in 1851, but the terms do not appear in the database until 1860). We analyzed a sample of 1,865 editorials to discover the various meanings associated with the concept. A random sampling procedure that ensured an even time series was used. Four editorials from each year in three-month intervals were taken, shifting the four months we used each year. This ensured a sample from each month. The result was a sample of 576 editorials using the word *reasonable* and 572 using the word *unreasonable*. Given the smaller amount of total usage, all 602 editorials using the term *reasonableness* and all 115 editorials using the term *unreasonableness* were included in the sample.

We analyzed approximately 400 editorials over a six-month period as a team to develop the coding scheme. For the initial phase of the study we concentrated our efforts on cataloging the meanings of the concept. All coding was performed by two members of the team. Reliability was assessed by recoding of a random sub-sample, yielding Kappa scores of 1.00 for the terms *unreasonable*, *reasonableness* and *unreasonableness* and .873 for the term *reasonable*; for a total combined Kappa of .892. Upon achieving reliability, the complete sample was distributed between the two coders.

Results

There are four basic meanings of *reasonableness* as used in the *Times* editorial page. These are prudent, rational, fair, and appropriate.

1. *Prudence*. Prudence refers to the ability to judge in a contextually sensitive manner. At its core, prudence is a character trait that materializes in and through a person's decision-making abilities; a person who uses common sense and good judgment to arrive at contextually sensitive decisions is said to be reasonable. For instance an October 1, 1909, editorial entitled "Judge Gaynor and Tammany: Two Mayoral Candidates" contrasts Judge Gaynor who is described as "ill-balanced in mind" and "disregardful of the consequences of his acts or words," and Mr. Bannard who "is the very embodiment of those qualities of reasonableness, balance, business experience, and wise of understanding of the true welfare of the city which in Judge Gaynor are so conspicuous in their absence." To understand the use of *reasonable* you need only contrast it with the terms used to describe Judge Gaynor, "ill-balanced in mind" and particularly "disregardful of the consequences of his acts or words." Reasonableness in this sense contrasts with poor judgment and a blatant disregard for context.

2. *Rationality*. In its most general sense, rationality referred to those judgments based upon, or at least appearing to be based upon, a logical inference supported by sound evidence. The most common usage in the editorials, however, was to describe a person willing to give and listen to good reasons and who draws conclusions based on the best available evidence. The unreasonable actor refuses to consider the good reasons offered by others. Reasonableness as rationality is often used to describe the relationship between one's perception and the facts of the matter, or one's emotional state and reality, as well as the relationship between means and ends. For instance, in a December 5, 1982, editorial titled "Stimulate" in which the *Times* argues that the Reagan administration monetary policies were making the pain of the recession worse, it is suggested that fears that easing credit would bring back inflation were not "reasonable" once all the facts were considered. "These

are reasonable fears, but only in the abstract. The inflation risk would not be worth taking if unemployment were say, 7.8 percent and factories were operating at 75 percent of capacity. But unemployment is now 10.8 percent and factories are operating at an anemic 68 percent.” Or, for example, in an August 1, 1981, editorial titled “The Constitution on Guns” in which the *Times* argues that the right to carry a firearm should be restricted to those cases where it can be shown that the possession of a firearm bears some “reasonable relationship to the preservation or efficiency of a well-regulated militia.”

3. *Fairness*. *Fairness* is used to describe persons and proposals. A fair proposal (or a demand, a request and many other possible variants) is one that is equitable or just for all parties involved. Again, perhaps the most common usage of *fairness* is to refer to a person willing to propose or abide by fair terms of cooperation. *Unfairness*, or in our case *unreasonableness*, refers to inequitable proposals or people who refuse to propose or abide by fair terms of cooperation. Fairness is by far the most common meaning of *reasonableness*, prevalent in discussions of labor, anti-trust, tariffs and diplomacy, in particular US/Soviet cold war diplomacy. The actors in the Cold War drama, particularly Soviet and U.S. politicians, were often characterized as being either reasonable or unreasonable, as were their policies and proposals. For instance, in a May 10, 1952, editorial on the upcoming Geneva summit: “The communists think that their best tactic at Geneva would be to show enough reasonableness to keep the trend toward the summit strong, but enough firmness of basic position to demonstrate that only the men of the summit can come to any meaningful agreement.” *Reasonableness* is also used ironically to cast doubt on Soviet motives. For instance, in an April 4, 1954, editorial titled “Behind New Soviet Peace Drive: Three Aims”: “The present soviet strategy appears to have two quite different faces. One is represented by the seemingly sweet reasonableness of the latest Soviet note suggesting, in effect, that Russia, the United States and all European nations join together in one happy family, freed from the threat of war by the collective security of East and West. Soviet propaganda on expanded East-West trade is in the same vein.” In the above examples

reasonableness is used to acknowledge a desire to cooperate and a sense of justice, both in action and in result.

4. *Appropriateness.* *Appropriateness* is multi-faceted, meaning both “fitting to social norms,” and “within or exceeding proper limits; proportional.” The issue of social norms refers specifically to people’s modes of presentation and how those modes measure up to societal expectations. Issues such as presentation of self in public, style, and conforming to gender or race norms fit under this meaning category, though to our surprise this is one of the least frequent uses of the term in our database. Proportionality, however, after fairness, is the most common usage, often referring to how rates or prices measure up in comparison to what others charge for the same service, and whether that rate is consistent with the general social expectation of what such a service should cost.

Of particular importance in the late nineteenth and early twentieth centuries were issues pertaining to the railways. Take for instance a July 7, 1874, editorial titled “An Important Decision,” which argued against the Wisconsin Railroad Law, which had recently reduced fares by 25 percent. The Wisconsin legislature had taken on the issue of fares, setting what constituted a “reasonable” rate by stipulating what they thought were “reasonable” profits. This is a clear use of reasonableness as fairness. The railroad corporations, on the other hand, argued that a jury not the legislature should determine what constituted a reasonable rate. The railways hoped that juries would not use such a “political” standard of “reasonableness,” but would instead favor the stockholders (juries in this case being much more likely to be populated by shareholders than the poor) and would allow the railroad to determine what constituted a “reasonable” rate, based on what the public would pay and what profits it could accrue. Or as the editorial page put it: “What is a reasonable rate is a problem constantly changing, and one which can not be determined with any hard and fast rule. The question whether in any case rates are unreasonable must, the company maintains, be tried like any other controversy, before a court and jury, with liberty for both parties to be heard.” The key similarity between reasonableness as socially appropriate and reasonableness as cost proportionate is that both meanings look to how an

act or a rate measure up in the eyes of the party being affected by a particular transaction (with who that is always being open to debate, as we see in this example). If a charge is deemed to violate a societal expectation, or the charge is not deemed proportionate to the service provided, it is labeled unreasonable.

Assuming we have done a “reasonable” job of differentiating these usages, we would benefit from an empirical test of how these usages relate to each other. That is, are some usages more likely to be used together or co-vary with each other or are all these independent of each other in use? A principal component analysis was performed on the correlations between the frequencies of the usages across the 144 years. That is, the extent to which the uses co-varied with each other was examined by correlating the frequencies of the four usages. For example, to what extent is prudence used more in years that fairness is also used more. The resulting correlation matrix tells us the extent to which usage co-varies with every other usage.

The result of a principal component analysis with varimax rotations was a three-factor solution. That solution is provided in the table below.

Table 1			
Factor Loadings after Varimax Rotation			
Variables	Factor1	Factor2	Factor3
X1 (prudence)	-0.069912	0.982552	-0.040631
X2 (rationality)	-0.101732	0.041543	-0.991845
X3 (fairness)	-0.846087	-0.076802	-0.020567
X4 (app.)	-0.741817	0.202569	-0.130528

The solution is very clear. Two of the four usages form their own factor and are independent of each other. Factor two is defined almost exclusively by prudence. And factor

three is defined almost exclusively by rationality. These two factors, or usages, vary independently of each other. The remaining two usages, fairness and appropriateness, together define factor one. The fact that they are loaded so strongly on the same factor and that the other two variables, prudence and rationality, are loaded weakly on that factor suggests that these two usages may be very similar to each other. Further, these results suggest that a revision of the analytic distinctions set out above may be appropriate. That is, we may want to consider fairness and appropriateness as a single meaning category. The results of this factor analysis, if taken seriously, may be considered in a very positive light. One of the standards by which theory is often judged is parsimony: the ability of a theory to explain or predict with fewer, rather than more, theoretical units. In this case we may say that we can understand the meaning of *reasonableness* in public deliberations by distinguishing three, rather than four, uses of the term.

The vast majority of usage is comprised of factor one, the non-epistemic categories fairness and appropriateness. In fact the epistemic categories, rationality and prudence, factors two and three, comprise only 30% of the total population, with prudence making up 6% and rationality making up 24% of the total uses of the term. Factor one, on the other hand, makes up 70% of the total population, with appropriateness accounting for 24% and fairness accounting for 46% of the population.

Discussion and Conclusions

The first two meaning categories, prudence and rationality, taken together comprised what we understand as an epistemic conceptualization of reasonableness. Epistemic reasonableness is defined as the sound use of reason, the use of commonly accepted facts, and sensitivity to context as the basis of judgment. It also refers to the psychological and ethical capacities necessary to use reason soundly. The test of such a conception is whether or not it is ultimately grounded in some notion of truth or truthfulness, even if that notion of truth is very liberally defined as social consensus, coherence or fittingness rather than correspondence.

The two remaining meaning categories—fairness and appropriateness—depart from the epistemic norm. What we call non-epistemic reasonableness is the judgment that an application of power (which can be encapsulated in a statement, proposal or demand) is just and/or fitting to the social norms of a particular community (social standards themselves can be judged as unreasonable, as unfair). This also includes the willingness to propose and abide by fair, just and appropriate terms of social cooperation. Thus, it may be a description of an act or person. The test of such a conception is whether or not it is ultimately grounded in a notion of justice. That is, even if the statement or proposal was backed by good reason, evidence or a responsiveness to the situation, that fact would not be sufficient to show that it was fair, just or appropriate. This extra criterion is the non-epistemic content of reasonableness.

What is most striking about our findings is their dissonance with contemporary argumentation theory. Argumentation theorists currently understand reasonableness in epistemic terms. This is true for each of the three major schools of argumentation theory. First, informal logicians understand reasonableness as an objective standard of argument evaluation, one comprised of the rules of rational inference. Reasonableness is a quality ascribed to epistemically serious arguments or rationally motivated persons. An argument is reasonable if substantive (objective, fair, and non-question-begging) criteria and standards are applied appropriately. An argument is reasonable, then, inasmuch as it is rational, albeit in a material rather than a purely formal sense. A reasonable person properly assesses reasons and desires to govern her or his judgment and conduct in line with rational principles. Harvey Siegel (1988) posits this desire or “critical spirit” as the defining disposition of a reasonable person. A reasonable person has more than highly developed critical thinking skills: she or he has a certain sort of character, “a character which is inclined to seek, and to base judgment and action upon, reason; which rejects partiality and arbitrariness; which is committed to the objective evaluation of relevant evidence, and which values such aspects of critical thinking as intellectual honesty, justice to evidence,

sympathetic and impartial considerations of interests, objectivity and impartiality” (p. 34). Hence, informal logicians would focus almost exclusively on factor three.

Second, pragma-dialecticians understand reasonableness in terms of the disposition of the arguer, as the willingness to conform to the rules of critical-rational discussion, most importantly to avoid using fallacious reasoning. Procedural theories locate reasonableness in the goal-oriented standards regulating the conduct of argumentative discussions and the methods for evaluating inferential form (van Eemeren et al., 1993). A procedural design and its attendant code of conduct defines the parameters of reasonableness. Thus, “an ideal model aims at providing an adequate grasp of argumentative discourse by specifying which modes of arguing are acceptable to a rational judge in view of a certain philosophical conception of reasonableness” (van Eemeren & Grootendorst, 1992, p. 7). If we do not assume the presence of umpires to regulate participants’ argumentative moves, then we must presume that interlocutors will govern their own conduct. Participants must become the rational judges who adjudicate meta-level disputes arising in argumentative discussions; they must not simply know the rules of critical discussion but must also have the ability and desire to apply these rules to their own conduct. In other words, they must be reasonable persons. The epistemic ideal of reasonableness as rational disposition, therefore, is a constitutive prerequisite of the procedural ideal (van Eemeren et al., 1993; Habermas, 1996). Hence, pragma-dialecticians too would be concerned with factor three.

Third, rhetoricians understand reasonableness as an embodied, communicative rationality, a prudence cashed out in terms of a non-dogmatic open-mindedness. Rhetoricians define reasonableness as a respecification of rationality in less formal and transcendental terms than allowed by the epistemic tradition. Reasonableness is an inclusive, substantive, and multifaceted account of rationality that avoids the anti-modern excesses, in particular relativism, of those who would reject reason outright. “This different way of thinking about rationality,” Nicholas Burbules (1995) explains, “provides the guidance and structure needed for coherent thought in epistemic, practical, and moral matters without proclaiming the existence of transcendental and universal standards that are problematic

from a postmodern point of view” (p. 84). As defined within the rhetorical perspective, the reasonable, then, is the rational, albeit a socialized or communicative rationality. Thus rhetoricians would focus on the qualities expressed in factor two (a selection perhaps shaped by the practice of examining the arguments and acts of particular speakers).

While traces of a non-epistemic conceptualization can be found in each of these three perspectives, they each purchase critical objectivity by conflating reasonableness and epistemic rationality. We can tentatively conclude, then, that contemporary argumentation theory might only account for 30 percent of the ways in which *reasonableness* is used in public argument. This inability to account adequately for the most prevalent meanings of *reasonableness* may warrant a substantial re-specification of our philosophical conception of reasonableness, and, given the centrality of the concept, a re-specification of contemporary argumentation theory as a whole. In summary, the contests over what is reasonable, how its meanings shift over time and situation, and its continual power to signal the substance and limits of social being are a sign that it is a unique philosophical concept, one capable of disclosing the contours of the political imagination of the public as it struggles to articulate and embody its conception of justice.

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